

monetary sanctions in the amount of \$1,500.00 against Plaintiff.

Defendant demonstrates that it filed a demurrer to the Plaintiff's Complaint, GM's responsive pleading on September 19, 2025, which started the initial discovery timeline set forth under Code of Civil Procedure section 871.26, including the right to take the deposition of the Plaintiff within 120 days of filing of its demurer. (Declaration of Lasater ¶ 3). Defense attempted to meet and confer about discovery starting on September 19, 2025 (*Id.*, 4; Exhibit A) and noticed the deposition of the Plaintiff for October 31, 2025. (*Id.*, 5; Exhibit B). On October 28, 2025, just three days before the scheduled deposition, Plaintiff's counsel objected to the Notice of Deposition on the grounds that it was unilaterally set and that Plaintiff and/or counsel were unavailable. (*Id.*, 6; Exhibit C). From January 12, 2026 to January 22, 2026, defense counsel attempted to meet and confer about rescheduling Plaintiff's Deposition, but did not receive a response from Plaintiff's counsel. (*Id.*, 7-8; Exhibit D). Defense asserts that the statutory deadline to conduct the deposition of the Plaintiff was January 16, 2026. (*Id.*, 9).

In opposition, Plaintiff's counsel asserts that the motion is moot because Plaintiff's deposition was taken on June 3, 2026. (Opposition, 3-4; Declaration of Smith, ¶ 5-7; Exhibit B). Plaintiff's counsel represents that on February 16, 2026, his office reached out to defense counsel and offered a video deposition for Plaintiff on June 3, 2026 at 11:00 a.m., which the defense accepted and served an Amended Notice of Deposition for that date. (Declaration of Smith, ¶ 4; Exhibit A). Plaintiff's counsel attests that because the deposition was completed and that the office acted in good faith, the motion is "no longer outstanding", and there is not failure to comply that would warrant a sanction against counsel. Plaintiff also objects to the motion to compel on the grounds that Plaintiff is not refusing to appear for deposition, but simply seeking a reasonably noticed deposition date. (Declaration of Smith ¶ 3). Plaintiff argues that Defendants' September 19, 2025, notice of deposition for Plaintiff on October 31, 2025, was unilaterally noticed and that Plaintiff and Plaintiff's counsel were unavailable on that date. (Opposition, p. 2-3).

In its reply brief, defense emphasizes that this motion is **not** moot and that Plaintiff's counsel misstates that the motion is moot as deposition was completed on June 3, 2026, citing that it was a different case, (Case No. 25CV467009) for a 2020 Chevrolet Silverado that is **not** related to this present case (Case No. 25CV467501) for the Subject Vehicle. (Reply, p. 1; Declaration of Stark, ¶ 7). Defense asserts that Plaintiff's counsel repeatedly failed to comply with their statutory requirements having objected to a properly noticed deposition and failing to respond to GM's repeated attempts to schedule Plaintiff's deposition. (*Id.*).

The Court finds this misstatement to be significant and finds that the motion remains at issue. Exhibit A attached to the Declaration of Smith includes an email correspondence that bears the subject line: "[EXTERNAL] RE: Plancarte, Juvenal v. GM | Case no. 25CV67009 | Setting Pltfs' Depo." The Court notes that while the name of the Plaintiff is correct, the case number does not match the case number in this present case, 25CV467501. Plaintiff's counsel has failed to show good cause for failing to produce the Plaintiff for deposition within 120 days after the defense filed a responsive pleading. (Code of Civ. Proc., § 871.26(c)(1)). The Court does not find Plaintiff's reasoning persuasive. For over four months Defendant has demonstrated its efforts to meet and confer about the deposition of the plaintiff. The Court GRANTS the motion to compel Plaintiff's deposition.

IV. SANCTIONS

Code of Civil Procedure section 871.26, subdivision (j), subsection (2) provides in relevant part:

Unless the party failing to comply with this section shows **good cause**, notwithstanding any other law and in addition to any other sanctions imposed pursuant to this chapter, a court **shall** impose sanctions as follows:

- (2) A one-thousand-five-hundred-dollar (\$1,500) sanction against the plaintiff's attorney or two-thousand-five-hundred-dollar (\$2,500) sanction against the defense attorney respectively, paid within 15 business days for failure to comply with the provisions relating to depositions as prescribed in subdivision (c).

(Code of Civ. Proc., 871.26(j)(2))(emphasis added).

Here, Defendant seeks a total of \$1,500.00 in sanctions under Code of Civil Procedure section 871.26(j)(2) against Plaintiff's counsel Strategic Legal Practices, APC. (Declaration of Lasater ¶ 11; Reply 1-2). Defense argues that Plaintiff's failure to comply with initial disclosures necessitates the imposition of sanctions and that Plaintiff fails to show good cause as to why sanctions should not be imposed. (Defense MPA, p. 14).

In opposition, Plaintiff asserts that Plaintiff has shown good cause and that sanctions are not warranted, "[b]ecause the Motion is moot and should be denied rather than granted, no sanction may issue." (Opposition, p. 4). Plaintiff emphasizes, "Here, there is no failure to comply. Plaintiff has not participated in the initial deposition that the statute requires, so the predicate for any sanction is absent." (*Id.*). Plaintiff argues that imposing sanctions would be unjust. (*Id.*). Finally, Plaintiff avers that Defendant has not suffered any prejudice as GM obtained the very discovery it seeks, the deposition of Plaintiff, which Plaintiff's counsel represents took place on June 3, 2026. (*Id.*, at p. 5).

In its Reply, as set forth above, defense argues that Plaintiff's counsel misstates that the deposition of the Plaintiff was taken on June 3, 2026, and confuses it with another matter (Case No. 25CV467009). (Reply, p. 1; Declaration of Stark, ¶ 7). Defense argues sanctions is merited as Plaintiff's counsel reputedly failed to comply with initial discovery under Code of Civil Procedure section 871.26, and emphasizes that the statutory deadline to conduct the deposition of the Plaintiff was on January 16, 2026. (Declaration of Lasater, ¶ 9). Despite defense's multiple attempts to schedule a deposition, Plaintiff has not provided a response. (*Id.*, ¶ 7-10). Without Plaintiff's deposition, defense asserts prejudice that it is unable to adequately prepare for the Code mandated mediation which is to occur 150 days after GM filed its responsive pleading. (Defendant's MPA, p. 7).

The Court finds that Plaintiff has not demonstrated good cause in its failure to comply with the initial discovery set for in Code of Civil Procedure section 871.26. Plaintiff's counsel's representation that the motion is moot as the Plaintiff's deposition has been completed has been challenged by defense as mistaking it for another matter. Pursuant to Code of Civil Procedure section 871.26(j)(2), the Court GRANTS sanctions against Plaintiff's counsel and law firm Strategic Legal Practices, APC in the amount of \$1,5000.00. Plaintiff's counsel is ORDERED to make payment within fifteen (15) business days for failure to comply and producing the Plaintiff for deposition withing 120 days after the defense files of responsive pleadings under subdivision (c)(1).

V. CONCLUSION

Based on the foregoing, the Court GRANTS the motion to compel the deposition of the Plaintiff. Plaintiff is to make himself available for deposition within ten (10) days of this hearing. Pursuant to Code of Civil Procedure section 871.26(c), the initial deposition is not to exceed two (2) hours of the Plaintiff.

The Court GRANTS sanctions in the amount of \$1,500.00 against Plaintiff's law firm, Strategic Legal Practices, APC, which is to be paid within fifteen (15) business days from this hearing.

The Court will prepare the formal Order.

Calendar Line # 9
Case Name Theresa Perry vs Emergency Housing Consortium et al
Case No. 25CV482065
Motion to Strike Fraudulent Attorney’s Lien and Compel Settlement Disbursement <u>I. BACKGROUND</u> On December 15, 2025, Plaintiff Theresa Perry filed a Complaint against “Defendants Emergency Housing Consortium[,] Home First Services[,] Sabrato Family Living Center[,] John C. Miller Jr. Esq (State Bar 143323) [,] E. Forrest Shryock Jr. [,] Vogl Meredith Burke Streza LLP[,] Umid Babjonov, Esq. [,] Vogl Meredith Burke[,] Jane Hart Esq. [,]Vogl Meredith Burke[,]and Thomas S Gelini, Esq. [,] and Kevin Lewis (collectively “Defendants”). Plaintiff seeks monetary and punitive damages. Plaintiff does not allege specific causes of actions, but asserts fraudulent liens. No proof of service of the summons and complaint has been established. Defendants have not filed Answer or filed responsive pleadings. On January 8, 2026, Plaintiff filed this present Motion to Strike Fraudulent Attorney’s Liens and Compel Settlement Disbursement. The motion was accompanied by a proof of electronic service to John C. Miller, Jr., Esq, E. Forrest Shyrock, Jr., Esq., Jane Hart, Esq., Umid Babajanov, Esq., Thomas S. Gellini, Esq., Kevin Lewis, Shannon Pinckney, Sara Steele, Taylor Alves, and Jessica McDonald on that same day. The Court has reviewed Plaintiff’s notice and motion (totaling 10 pages); Declaration of Theresa Perry (totaling 4 pages); proof of service; and the pleadings. <u>II. LEGAL STANDARD</u> Pursuant to Code of Civil Procedure section 415.10 provides the requirements of personal service of summons and the complaint as follows: A summons may be served by personal delivery of a copy of the summons and of the complaint to the person to be served. Service of a summons in this manner is deemed complete at the time of such delivery. The date upon which personal delivery is made shall be entered on or affixed to the face of the copy of the summons at the time of its delivery. However, service of a summons without such date shall be valid and effective. (Code Civ. Proc., § 415.10). Code of Civil Procedure section 415.20 governs substituted service. Subdivision (a) applies to substituted service at an office or usual mailing address. Subdivision (b) applies to substituted service at a person’s residence and provides, in part: If a copy of the summons and complaint cannot with reasonable diligence be personally delivered to the person to be served ... a summons may be served by leaving a copy of the summons and complaint at the person’s dwelling house, usual place of abode, usual place of business, or usual mailing address other than a United States Postal Service post office box, in the presence of a competent member of the household or a person apparently in charge of his or her office, place of business, or usual mailing address other than a United States Postal Service post office box, at least 18 years of age, who shall be informed of the contents thereof, and by thereafter mailing a copy of the summons and of the complaint by first-class mail, postage prepaid to the person to be served at the place where a copy of the summons